

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1936

By: Sterling

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2024, Section 3-101), which relates to the State Board of Education membership; modifying membership of the Board; requiring Senate confirmation for certain appointments; providing for members to serve at the pleasure of the appointing authority; directing vacancies to be filled by the appointing authority; providing for initial appointments within specified time; establishing termination date for initial appointments; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2024, Section 3-101), is amended to read as follows:

Section 3-101. A. The State Board of Education shall consist of ~~seven (7)~~ eleven (11) members. The State Superintendent of Public Instruction shall be a member and the chairperson of the Board. The remaining ~~six~~ ten members shall be appointed as follows:

1 1. Six members appointed by the Governor by and with the advice
2 and consent of the Senate. Except as otherwise provided for in
3 subsection B of this section, upon assuming office each Governor
4 shall appoint one member from each congressional district and one
5 member from the state at large;

6 2. Two members appointed by the Speaker of the Oklahoma House
7 of Representatives, one which shall be a rural resident of the state
8 and one which shall be a former school superintendent from a
9 district with an enrollment of less than ten thousand (10,000)
10 students; and

11 3. Two members appointed by the President Pro Tempore of the
12 Oklahoma State Senate, one which shall be a rural resident of the
13 state and one which shall be a former school superintendent from a
14 district with an enrollment of more than ten thousand (10,000)
15 students.

16 Each appointment shall be made to take effect on April 2. The term
17 of each appointed member shall be four (4) years. Appointed members
18 shall serve until a successor is appointed. Appointed members shall
19 serve at the pleasure of ~~the Governor~~ their appointing authority.
20 Upon the occurrence of a vacancy the same shall be filled by the
21 ~~Governor~~ appointing authority for that vacancy, subject to
22 confirmation by the Senate at the next session of the Legislature if
23 the vacancy is a member appointed by the Governor. The appointment
24 to fill a vacancy shall be made for the unexpired term.

1 B. On ~~the effective date of this act~~ August 26, 2011, all
2 appointed positions of the current State Board of Education shall be
3 deemed vacant and the terms of persons serving on the Board shall be
4 deemed terminated. The ~~Governor~~ appointing authority shall make
5 initial appointments pursuant to the provisions of this subsection
6 within thirty (30) days of ~~the effective date of this act, with one~~
7 ~~member appointed from each congressional district and one member~~
8 ~~appointed from the state at large~~ August 26, 2011. The appointments
9 Members appointed by the Governor shall be subject to confirmation
10 by the Senate at the next session of the Legislature. The terms for
11 members appointed pursuant to this subsection shall terminate on
12 April 2, 2015. Thereafter, members shall be appointed as provided
13 for in subsection A of this section.

14 C. No person shall be eligible to be appointed to serve on the
15 Board unless the person has been awarded a high school diploma or
16 certificate of high school equivalency. No person shall be
17 appointed to serve on the Board if the person serves on a board of
18 education of a school district which is supervised by the Board
19 pursuant to Section 3-104 of this title. Any member appointed to
20 the Board shall complete the workshop requirements of a new school
21 board member pursuant to Section 5-110 of this title within thirteen
22 (13) months following or preceding the appointment of the member.
23 Notwithstanding any provision of law to the contrary, the State
24 Department of Education shall not charge any member of the State

1 Board of Education a fee for any workshop provided by the Department
2 for board members pursuant to Section 5-110 of this title and shall
3 not pay a fee to any organization or institution of higher education
4 on behalf of a member of the State Board of Education, or reimburse
5 any member of the Board for a fee paid to any organization or
6 institution of higher education, for attendance at a workshop or
7 courses to satisfy the requirements of Section 5-110 of this title.

8 D. Members of the Board shall receive necessary ~~traveling~~
9 travel expenses while in the performance of their duties in
10 accordance with the State Travel Reimbursement Act.

11 SECTION 2. This act shall become effective November 1, 2025.
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